FACULTY OF INTERNATIONAL RELATIONS

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EEI/Lecture-seminar 3

Prague University of Economics and Business

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Quick revision and a new reader

- Reader 2 (at home):
  - Green, D. M. (2010). Has Europe Solved the Problem of War? Explaining the ‘Long Peace’of the post-1945 Era. *European Review*, *18*(3), 365-377.
- Reader 3:
  - Russack, S. (2019). EU parliamentary democracy: how representative?. *CEPS Policy Insights*, *7*.

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About decision-making: history

- Primary law
- Secondary law

- Previous models of decision-making
- Luxembourg compromise
- QMV (Qualified majority vote) now becomes more common!

Types of legislative procedures

- Ordinary legislative procedure (co-decision; OLP)
- Cooperation
- Consultation
- Assent procedure

Cooperation

- The co-operation procedure was introduced under the Single European Act in 1987. It represented the first, albeit limited, power of the European Parliament to ensure its amendments were incorporated into legislation
- Co-operation procedure was applied originally only to about ten articles of the EEC Treaty. Still, they included important areas, notably the bulk of legislative harmonisation necessary for the single market, specific research programs, regional fund decisions and some social policy matters

Consultation

- Of the four procedures, this one concentrates the most power in the hands of the Council. So it is used for the most sensitive measures. The procedure was introduced under the EEC and Euratom treaties, which entered into force in 1958. There is no time limit on it
- The consultation procedure applies to measures that directly affect the establishment of the single market. But in practice, the Council has undertaken to consult the EP on Commission proposals within a week of receiving them, except in cases of urgency. The Commission has also agreed to send the proposals it sends to the Council directly to the Parliament

Assent procedure

- Assent procedure is essentially a process whereby the EP ratifies, or gives its assent to, international agreements agreed by the EU. The EP can only accept or reject the agreements. It cannot amend them. The procedure does not apply to trade agreements

Ordinary legislative procedure (OLP)

- The co-decision procedure was first introduced in 1992, and its use was extended in 1999. With the adoption of the Lisbon Treaty, co-decision was renamed the ordinary legislative procedure and became the main decision-making procedure for adopting EU legislation. It applies to around 85 policy areas

Legislative initiative

- European Commission
- Council of the EU
- In specific cases, also member states
- ECB, ECJ or EIB

Green and White Papers

- Non-legislative documents issued by EC
- Green papers – support and raise debate on a specific issue
- White papers – propose and introduce a solution
- Issuing the green papers before the white papers is not required

Citizen initiative

- Introduced in the Lisbon Treaty
- Min. one million citizens may invite the Commission to submit any appropriate proposal on matters where it is necessary to adopt a legal act
- The initiative must meet the following conditions
  - By citizens; a citizens‘ committee has been appointed as a contact person
  - A proposed citizens' initiative does not manifestly fall outside the scope of powers of the Commission to propose a legal act of the Union for the purpose of implementing the Treaties
  - A proposed citizens' initiative is not manifestly abusive, frivolous or vexatious
  - A proposed citizens' initiative may not be manifestly contrary to the values of the Union as set out in Article 2 of the EU Treaty

Successful initiatives (examples)

- 129 registered, only 12 answered
- Answered:
  - My Voice, My Choice: For Safe And Accessible Abortion
  - Cohesion policy for the equality of the regions and sustainability of the regional cultures
  - Fur Free Europe
  - SAVE CRUELTY FREE COSMETICS - COMMIT TO A EUROPE WITHOUT ANIMAL TESTING
  - Save bees and farmers ! Towards a bee-friendly agriculture for a healthy environment
  - End the Cage Age
  - Minority SafePack – one million signatures for diversity in Europe
  - Ban glyphosate and protect people and the environment from toxic pesticides
  - One of us (human embryo)
  - Stop Finning – Stop the trade
  - Water and sanitation are a human right! Water is a public good, not a commodity!
  - Stop Vivisection (against animal experiments)

Pre-legislative phase

- Text being prepared at DG EC (Directorates General of the EC)
- Precision, completion, correct formulations
- Proposal can also be drafted as a result of the green or white paper

End of pre-legislative phase

- Control of technical details, language revision
- Voting of commissioners (each has a single vote)
- The legislative proposal has a strict structure, which also includes an assessment of the impact, confirming compliance with the principles of subsidiarity and proportionality, and also budget implications
- Sometimes, the proposals are submitted as „packages“

How does the entire process start?

- The Commission submits a legislative proposal to the Council of the EU and to the Parliament
- Proposal is at the same time sent to national parliaments and in some cases also to the European Economic and Social Committee (EESC) and to the Committee of Regions (CoR)

1st reading in EP

- In the European Parliament, they begin discussing the draft; the allocation of rapporteurs of the committees that it merits belongs to
- An important role of parties
- EP decides on the proposal with a simple majority

1st reading in Council

- Proposal is being discussed in the relevant committee
- Role of COREPER
- Council meets in relevant formation and discusses the proposal

2nd reading in EP

- Institutions are familiar with the agenda, which enables concentrating on controversial points
- Allegiance to the time limits
- Parliament has three options
  - No statement (it agrees with the Council)
  - Rejects with an absolute majority
  - Adds amendments

2nd reading in Council

- If the 2nd reading in the EP is successful, the Council has the following options
  - Agree (with the version presented to the EP)
  - Disagree - then comes to “the Conciliation Committee”

Conciliation Committee and the 3rd reading

- Mediation
- The vote shall be reached with a qualified majority
- Consequently, it is necessary approval of the EP and the Council

What happens once the legislation is approved?

- The adopted legislation enters into force by finalising its text/publishing the legislation in the official journal
- In the case of the Directives, a deadline is set
- In the case of non-compliance, appeals to the ECJ can apply

Role of national parliaments

- Early warning system
- Yellow card
- Orange card

Competencies after the Lisbon Treaty

- Exclusive
  - Customs union
  - Determination of the competition rules necessary for the functioning of the internal market
  - Monetary policy for the Member States whose currency is the euro
  - Conservation of marine biological resources under the common fisheries policy
  - Common commercial policy
- Shared
- Supportive

Competencies after the Lisbon Treaty

- Shared
  - Internal market
  - Social policy
  - Economic, social and territorial cohesion
  - Agriculture and fisheries, excluding the conservation of marine biological resources
  - Environment
  - Consumer protection
  - Transport
  - TEN
  - Energy
  - Freedom, security and justice
  - Common safety concerns in public health
  - Activities in the field of research, technological development and space
  - A common policy in the field of development cooperation and humanitarian aid

Competencies after the Lisbon Treaty

- Supportive, coordination competencies
  - Protection and improvement of human health
  - Industry
  - Culture
  - Tourism
  - Education, vocational training, youth and sport
  - Civil protection
  - Administrative cooperation

Competencies after the Lisbon Treaty

- Three principles determine how and in what areas the EU may act
  - Conferral – the EU has only that authority conferred upon it by the EU treaties, which all member countries have ratified
  - Proportionality – the EU action cannot exceed what is necessary to achieve the objectives of the treaties
  - Subsidiarity – in areas where either the EU or national governments can act, the EU may intervene only if it can act more effectively

Nature of the European law

- Autonomous legal order
- International law - EU law - national law
- Member states in some selected areas moved/shared their sovereignty with the EU
- The EU has its own rule-making
- The EU law is above the law of member states, a principle of loyalty of the member states

Structure of the EU law

- Classification according to the subject of making:
  - Created by the member states (primarily law)
  - Created by the EU (secondary law)
  - Main rules/principles of the ECJ

Hierarchy of the EU law

- Primary law
  - Founding treaties
  - Subsidiary agreements
  - “Acts of gov. representatives, as a result of the Council meeting”
- Secondary law
  - Regulation
  - Directive
  - Decision
  - Recommendations and opinions

Primary law/EU Treaties

- Treaty of Lisbon 2007/2009
- Treaty of Nice 2001/2003
- Treaty of Amsterdam 1997/1999
- Treaty on European Union - Maastricht Treaty 1992/1993
- Single European Act 1986/1987
- Merger Treaty - Brussels Treaty 1965/1967
- Treaties of Rome: EEC and EURATOM Treaties 1957/1958
- Treaty establishing the European Coal and Steel Community 1951/1952

Current state – Lisbon Treaty

- Treaty on the EU
- Treaty on the Functioning of the EU
- Charter of Fundamental Rights

Lisbon Treaty: selected reforms

- The EC-EU dualism has been removed
- The European Union acquires legal subjectivity at the international and national level; it is the legal successor of the EC; Euratom remains outside the EU, but shares with the institutions
- Values and objectives of the Union, sanctions for non-respecting them
- Respect for the national identities of the Member States vs. the principle of loyalty and the primacy of EU law
- The Charter of Fundamental Rights becomes a legally binding text at the level of the Treaties

Lisbon Treaty: selected reforms

- I of the Succession Clause, values and objectives, respect for the identity of the Member States, the principle of loyalty, the principle of conferred powers, the principle of subsidiarity, proportionality, the protection of human rights, the reception clause of the Charter of Fundamental Rights
- II Democratic principles of the EU
- III EU institutions
- IV Enhanced cooperation
- V Common Foreign and Security Policy
- VI Legal personality of the EU, amendments to the Treaties

Principle of loyalty and national identity

- Two aspects of the principle of Member States' loyalty
  - Positive (take measures to fulfil obligations arising from primary and secondary law)
  - Negative (refrain from measures that jeopardise the achievement of the Union's objectives)
- The European Union respects national identity (political and constitutional systems, self-government)

Values and objectives of the EU

- The values on which the Union is founded (Article 2 TEU)
- Respect for human dignity, freedom, democracy, the rule of law and respect for human rights
- Objectives (Article 3 TEU) general
  - Promoting peace, one's values and the well-being of the people resources:
    - Area of freedom,
    - Security and justice internal market, including the social dimension and mutual solidarity
    - Economic and monetary union
    - Relations with non-member countries based on similar values

Secondary law examples

- A "regulation" is a binding legislative act. It must be applied in its entirety across the EU. For example, when the EU wanted to make sure that there were common safeguards on goods imported from outside the EU, the Council adopted a regulation
- A "directive" is a legislative act that sets out a goal that all EU countries must achieve. However, it is up to individual countries to devise their own laws to achieve these goals. One example is the EU consumer rights directive, which strengthens consumer rights across the EU, for example, by eliminating hidden charges and costs on the internet and extending the period during which consumers can withdraw from a sales contract

Secondary law examples

- Decisions A "decision" is binding on those to whom it is addressed (e.g. an EU country or an individual company) and is directly applicable. For example, the Commission issued a decision on the EU‘s participation in the work of various counter-terrorism organisations. The decision is related to these organisations only
- A "recommendation" is not binding. When the Commission issued a recommendation that EU countries' law authorities improve their use of videoconferencing to help judicial services work better across borders, this did not have any legal consequences. A recommendation allows the institutions to make their views known and to suggest a line of action without imposing any legal obligation on those to whom it is addressed

Secondary law examples

- An "opinion" is an instrument that allows the institutions to make a statement in a non-binding fashion, in other words, without imposing any legal obligation on those to whom it is addressed. An opinion is not binding. It can be issued by the main EU institutions (Commission, Council, Parliament), the Committee of the Regions and the European Economic and Social Committee. While laws are being made, the committees offer opinions from their specific regional, economic, and social viewpoints. For example, the Committee of the Regions issued an opinion on the clean air policy package for Europe

Not respecting the values of the EU (Art. 7 TEU)

- Potential rules‘ violation
- The Council decides (4/5 by a majority, 1 state = 1 vote) with the consent of the EP states the situation, there is no sanction
- Breach of the principles decided by the European Council (unanimously) with the consent of the EP (two-thirds of the votes of the Members present, which must include a simple majority of Members)
- Eventual sanction: Council decision by qualified majority on suspension of membership rights

Membership in the EU

- EU accession (Article 49 TEU)
  - The candidate country submits an application to the Council
  - Negotiations on the Accession Treaty are conducted by the European Commission
  - The Accession Treaty requires the consent of the Council (unanimously) and the EP
- Withdrawal from the EU (Article 50 TEU)
  - Unilateral statement addressed to the European Council
  - Agreement on the conditions for withdrawal (to be concluded by the Council)
  - If no agreement is reached within 2 years of the notification, the agreements expire (the period can be extended)

Alternatives to non-membership/withdrawal

- European Free Trade Association (EFTA)
  - Established in 1960 as a free trade area where only the movement of goods (excluding agricultural products) is possible, not persons and capital
  - The only country that is not part of the EEA or the EU is Switzerland
- European Economic Area (EEA)
  - Since 1994
  - Four fundamental freedoms
  - Takes over part of the EU legislation horizontal and accompanying policies (eg, consumer, environmental, social policy, research and technological development)

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